

Capacity allocation & commercial terms — 7.5 MWp captive solar, MH

Allocation of AC capacity across three offtaker groups under group-captive / open-access supply through the MSEDCL network (33 kV injection). Non-binding; subject to definitive PPAs, MSEDCL/SLDC open-access approvals and MERC regulations in force.

3.0 MW_{AC} Harrshiv + 7 Haldiram stores · existing	4.5 MW_{AC} Chettinad · new 132 kV group-captive consumer	2.5 MW_{AC} REL Charging Stations · new
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0 Total contracted 10.0 MW_{AC} — against 7.5 MWp DC installed (inverter/export MW_{AC} to be confirmed; see Capacity basis) verify 10 MW_{AC}

Term	Harrshiv + stores	Chettinad	REL Charging Stations
Tariff	₹4.00 / kWh ex-bus, on energy credited (offset basis)	₹2.60 / kWh ex-bus, on energy credited (offset basis)	₹2.50 / kWh ex-bus, on energy credited (offset basis)
Lock-in	10 years from CoD of allocation; no exit without replacement offtaker	12 months rolling auto-renews monthly; exit on 12 months' notice	15 years from CoD; aligned to charging-asset life
Contracted capacity	3.0 MW _{AC} (≈3.75 MWp-equivalent share) — Harrshiv 2.25 MW _{AC} , stores 0.75 MW _{AC} pooled	4.5 MW _{AC} (≈5.6 MWp-equivalent share); option to step down to 3.0 MW _{AC} at each annual review	2.5 MW _{AC} (≈3.1 MWp-equivalent share); ramp per station commissioning schedule
Tariff escalation	Nil for years 1–5; 2% p.a. simple from year 6, or as per MERC-approved index	Nil within lock-in; re-priced at each 12-month renewal by mutual agreement (cap ±5%)	Nil for years 1–10; 1.5% p.a. simple thereafter
Billing basis & settlement	Monthly, on MSEDCL-credited units (direct + same-band credit); settlement as per MSEDCL practice; lapsed energy not billed	Monthly, on credited units at 132 kV meter; utilisation of share <60% for 3 months triggers capacity review	Monthly, on credited units; banking per MERC DOA rules; lapsed energy not billed
Minimum offtake	None (existing load); demand-charge exposure stays with consumer	Take-or-pay on 50% of allocated energy after month 6, settled quarterly	Take-or-pay on 60% of allocated energy from year 2 (station ramp year 1 exempt)
Open-access charges & losses	Wheeling, transmission, operating, ToSE, CSS/AS (if any), in-kind losses — to consumer's account as billed	Same; 132 kV drawal does not remove the 33 kV wheeling leg — path to be confirmed with MSEDCL/MSETCL	Same; LT/HT category per station connection to be confirmed
Group-captive eligibility	Haldiram group companies — common ownership; ≥26% equity and ≥51% proportional consumption to be evidenced	≥26% equity in SPV pro rata to share (≈₹3.5 Cr = 26% × 45% × ₹30 Cr); annual proportionality test; failure → CSS/AS payable by Chettinad	Equity subscription pro rata or captive-user agreement; failure → CSS/AS payable by REL
Payment & security	Net 15 days from invoice; 1.25% p.m. late-payment charge	Net 15 days; 2 months' billing as bank guarantee / LC	Net 15 days; 3 months' billing as bank guarantee / LC
Metering & scheduling	ABT main + check meters at 33 kV injection (MF 90 — certificate to be furnished); SLDC day-ahead schedule by SPV; consumer-side meters as per MSEDCL; monthly joint meter reading		
Availability & curtailment	SPV targets ≥98% availability (plant breakdowns such as 8-Jul-2026 are SPV risk; grid-caused outages are force majeure); SLDC backdown is deemed delivered for take-or-pay, not billable; generation below P90 in a contract year → 5% tariff rebate on shortfall energy		
Change in law / regulation	Changes in MERC DOA/banking/ToD rules, CSS/AS, ToSE or duty after signing are passed through to the consumer at cost; parties renegotiate in good faith if a change removes >15% of a consumer's annual saving		
Termination & exit	Early exit: NPV of remaining lock-in margin (tariff – ₹2.50 floor) or replacement offtaker acceptable to SPV	Exit on 12 months' notice without penalty; shorter notice → 3 months' average billing as compensation	Early exit: 2 years' average billing or replacement offtaker; SPV may re-allocate on 90 days' notice if stations not live by month 18
Conditions precedent	MSEDCL open-access permission per consumer and capacity; group-captive compliance evidence; metering certificate and approved export MW _{AC} ; resolution of pending MSEDCL items (wheeling/transmission-loss supplementary, recurring debit adjustments); board approvals of all parties		
Governing law	Indian law; MERC jurisdiction for regulatory disputes; arbitration (Mumbai seat) for commercial disputes		

Capacity basis. Allocations are in MW_{AC} as instructed. The plant is 7.5 MWp DC with inverter/export MW_{AC} still undocumented, and 10 MW_{AC} contracted exceeds the nameplate — consistent only with (a) augmentation / co-located wind, or (b) non-firm share-based allocations (each consumer receives its share of actual export). Shares are shown as MWp-equivalent in brackets (scaling to be fixed once MW_{AC} is confirmed). Modelled (Year & sizing): Chettinad uses ~57% of a 5 MWp share, Harrshiv 82–95%, stores 50–85%; ~4.9 GWh/yr lapses without a battery.

For the SPV (Ortusun / group)	Harrshiv Healthy Foods & More	Chettinad	REL Charging Stations
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